

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Ordinary Mandate

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Issued July 30, 2026

The judgment of this Court entered July 9, 2026 is now issued as the mandate. The district court's grant of judgment as a matter of law on mitigation is affirmed. The December 15, 2025 amended judgment awarding Blue Ember Biologics, LLC \$2,700,000 is affirmed. These two affirmances exhaust the appellate disposition.

No petition for rehearing was filed by July 23, and no mandate stay was sought on this route. The mandate issues seven days after expiration of the rehearing period in accordance with Federal Rule of Appellate Procedure 41. The July 30 release order authorizes this transmission.

The conditional Rule 59 ruling remains dormant because renewed judgment continues to control. This mandate does not decide the propriety of that ruling, approve or reject its damages-only scope, order a new trial, or direct any remand proceedings. Liability and causation remain unaffected.

The clerk transmits the mandate to fictional district clerk Avery Thorn for entry on the isolated training docket. Transmission does not create an event in an actual court, modify the historical causation-only motions, or allow the assumed express-preservation statements to be used as evidence elsewhere.

Mandate certification

The undersigned clerk certifies that the attached opinion and judgment correspond to the unanimous decision of Composite Jurists March, Rowan, and Slate. The opinion was decided, and judgment was entered, on July 9, 2026 after submission on the briefs. No oral argument occurred.

The mandate carries only the operative judgment. It does not incorporate hypothetical positions from briefs as findings and does not enlarge the two-component disposition. The affirmed amount reflects \$4,200,000 gross damages less the legally compelled \$1,500,000 net mitigation deduction, yielding \$2,700,000. No separate merits determination travels with that calculation.

Electronic copies are served on Maya Holt and Jonas Bell for Blue Ember and Eli Mercer and Tara Webb for Granite Heron. The district clerk may record receipt for sequence training, but no enforcement act may be represented as a real-world consequence of this synthetic instrument. Any acknowledgment must retain the same isolated docket and counterfactual status.

Issued July 30, 2026 under the seal assigned to this fictional record. The counterfactual docket identifier and both warnings must remain attached to every stored or rendered copy. The separate rehearing and mandate-stay alternatives are mutually exclusive and have no effect on this ordinary route or its certified transmission sequence.